



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

SEP 30 1993

DOT-E 11128

EXPIRATION DATE: June 30, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Gabriel Chemicals Inc., Houston, Texas.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of chlorosulfonic acid, a Class 8 material which is poisonous by inhalation, in four (4) uninsulated DOT Specification MC 312 cargo tank motor vehicles having design pressures of 50 psig, and provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.102(c)(3) Special Provision B32.
5. BASIS. This emergency exemption is based on the application of Gabriel Chemicals Inc. dated September 10, 1993 and additional information dated September 23, 1993 submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to preclude a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class (Written Class) class number	Identification number	Packing Group
Chlorosulfonic acid	8	UN1754	I

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Packagings prescribed are four (4) uninsulated DOT Specification MC 312 cargo tank motor vehicles which meet the following conditions:

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- ASME Code "U" stamped;
- no bottom outlets;
- fabricated from 316L stainless steel having a shell thickness of 0.1875 inch and a head thickness of 0.250 inch; and
- design pressure of 50 psig.

Only the following cargo tank motor vehicles are authorized:

<u>Serial Number</u>	<u>Unit Number</u>
H 37475	6592
CTK 7797	3034
H 35599	3648
H 37674	6833

b. TESTING - Each cargo tank covered by this exemption must be tested and retested as required for DOT Specification MC 312 cargo tank motor vehicles.

c. MARKING - Each cargo tank must be plainly marked on the curb side near the front in letters at least two inches high on a contrasting background, "DOT-E 11128".

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. The cargo tank motor vehicles authorized under this exemption may be used until construction of new cargo tanks which meet the improved integrity requirements contained in 49 CFR 172.102(c)(3) Special Provisions B9, B14, and B32 are completed and placed in service, but no later than the expiration date of this exemption.

d. New cargo tank motor vehicles must replace existing cargo tank motor vehicles on a one-for-one basis.

e. A certifying statement confirming order placement for the new cargo tank motor vehicles must be provided to the Office of Hazardous Materials Safety as soon as an order is placed.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Motor carriers operating under the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.

c. Drivers must have been instructed as to necessary safeguards and procedures in the event of unusual delay, fire, or accident.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

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Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA